Rogers Respite
AND COMMUNITY SERVICES

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Client Service Agreement

Informed consent, care arrangements and safety terms

Purpose. This document governs the provision of respite, community support and non-psychotherapy social work services to youth, adults and seniors, including persons with disabilities. Read all eight pages and complete the schedules before services begin.

1 | PARTIES AND AGREEMENT

Provider: Evan Rogers, MSW, RSW (OCSWSSW Registration No. 843082), operating as Rogers Respite and Community Services (the "Provider"). **Client:** the individual receiving services identified below. **Representative/Payer:** any other person signing in a documented legal or financial capacity.

CLIENT LEGAL NAME

DATE OF BIRTH

PREFERRED NAME / PRONOUNS

PHONE / EMAIL

CLIENT ADDRESS

REPRESENTATIVE / PAYER (IF APPLICABLE)

RELATIONSHIP / AUTHORITY

REPRESENTATIVE PHONE / EMAIL

Capacity and authority. The person signing for the Client must have lawful authority for the decision in question. A parent, guardian or payer is not automatically entitled to direct the care of, or receive confidential information about, a capable Client. Consent by children and youth is assessed based on the particular decision and applicable law.

2 | AGREED SERVICES AND BOUNDARIES

Respite and community support may include companionship, recreation, caregiver relief, community outings, routine support, appointment accompaniment, supervised participation and agreed transportation. **Social work services** may include supportive counselling (not psychotherapy), case management, psychosocial support, navigation, advocacy, referrals, caregiver support, planning and professional letters.

Not provided: psychotherapy; emergency or 24-hour crisis response; medical diagnosis or treatment; nursing or controlled acts; secure custody; routine physical restraint; intensive personal care or transfers beyond competence; legal/financial representation; or services that the Provider considers unsafe or outside training, scope or insurance.

No psychotherapy. Rogers Respite and Community Services does not provide psychotherapy. A requested service may be declined or referred elsewhere if it falls outside the Provider's competence, professional obligations or insured activities.

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SERVICE TERMS AND FEES

Sections 3–6

3 | INDIVIDUAL SERVICE PLAN

Services, goals, supervision level, locations, schedule, accommodations, support needs, transportation and safety arrangements are recorded in the Service & Safety Plan (page 7), which forms part of this Agreement. Material changes in health, mobility, cognition, behaviour, medication, emergency contacts or known risks must be disclosed promptly. The Provider may reassess or amend services if needs change.

4 | FEES AND EXPENSES

SERVICE	RATE
Initial fit consultation (up to 30 minutes)	**FREE**
Respite / community support	**$30.00 / hour**
Professional social work services	**$60.00 / hour**
Standard social work letter	**$60.00 / letter**
Provider vehicle: kilometres outside Chatham-Kent	**$0.70 / km**

What is billable. Hourly services are billed according to time actually provided (including agreed calls, case conferences, documentation, substantial advocacy and travel time only if specifically agreed beforehand). A reasonable estimate will be given where possible. Routine scheduling messages are generally not billed. Any special discounted package requires a separately documented written price; a package discount is not implied by this Agreement.

Letters. The $60 flat fee covers a brief standard letter based primarily on information already available. Complex reports, new assessments, forensic opinions, extensive forms or file reviews require a separate written estimate. The Provider may refuse inaccurate, unsupported or inappropriate content. Paying for a letter does not guarantee an opinion or outcome.

Client expenses. Parking, tolls, tickets, admission, food and other agreed Client-specific purchases are reimbursable at actual cost without undisclosed markup. Transportation billing applies only to kilometres in the Provider's vehicle travelled **outside** the municipal boundary of Chatham-Kent; the outside portion of agreed outbound and return routes may be counted. No mileage charge applies within Chatham-Kent. Taxes, if legally required, will be shown separately.

5 | INVOICING AND PAYMENT

Invoices are payable within **seven (7) calendar days** after issue by debit, e-transfer, cash or another approved method. The person signing as financially responsible agrees to pay authorized services and expenses. Receipts will be provided. Benefit-plan or insurance reimbursement is not guaranteed. The Provider may address overdue accounts and, after reasonable notice and consideration of continuity-of-care duties, suspend non-urgent services. Collection disclosures will be limited to what is lawful and necessary.

6 | CANCELLATIONS AND MISSED APPOINTMENTS

Please give at least **24 hours' notice**. Without sufficient notice, a missed or late-cancelled appointment may be charged up to **one hour at the booked rate** ($30 respite / $60 social work); emergencies and exceptional circumstances may justify waiver. No fee applies when the Provider cancels. Repeated missed appointments may lead to review of the service arrangement.

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CARE, SUPERVISION AND SAFETY

Sections 7–12

7 | DUTIES OF THE CLIENT AND REPRESENTATIVE

The Client/Representative will provide accurate and timely information about allergies, medical conditions, seizures, mobility, cognitive and communication needs, behavioural risks, wandering, relevant orders restricting access, required equipment and emergency contacts. They will provide a reasonably safe service setting, respect professional boundaries and disclose relevant changes before the next appointment. Failure to disclose material risks may require an immediate safety reassessment.

8 | SUPERVISION, CARE AND MEDICATIONS

Respite occurs in homes and public community environments; it is not a locked or secure setting. The level of supervision, whether continuous one-to-one or intermittent, must be expressly documented in the Service Plan. The Provider uses reasonable care but cannot guarantee prevention of every fall, injury, illness or unpredictable event. Personal-care, feeding, toileting, transfer and mobility assistance must be expressly assessed and agreed; unsafe lifts or specialized tasks may be declined.

Medication administration is **not included by default**. Any assistance requires separate agreement, clear labelled medication and instructions, and confirmation the task is legally and professionally appropriate. The Provider will not prescribe medication, change dosage, or make treatment decisions. Emergency medicines or specialized administration may be declined unless suitable training and authorization are in place.

9 | WANDERING AND ELOPEMENT

Elopement means leaving or becoming separated from expected supervision without prior agreement. Known incidents, triggers, likely destinations, traffic/weather risks, impairment and effective redirection strategies must be disclosed on page 7. If the Client becomes missing, the Provider will promptly assess danger, search or redirect when reasonably safe, contact caregivers, and contact **911/police without delay when risk is significant** (including a child, disoriented person, dangerous roads, extreme weather or imminent harm). The Provider will share necessary information with responders, document the incident and reassess the plan before further outings.

The Provider does not provide secure detention or routine physical, mechanical or chemical restraints. Any intervention in an immediate emergency must be lawful, proportionate, reasonably necessary and within competence.

10 | BEHAVIOURAL, ENVIRONMENTAL AND COMMUNITY HAZARDS

The Provider may modify, pause or decline an activity if unsafe due to threats, violence, serious harassment, dangerous weapons or animals, hazardous premises, unsafe intoxication, uncontrolled aggressive conduct, severe weather or other substantial risk. The Provider will endeavour to use respectful de-escalation, disability-informed approaches and reasonable accommodations. Community outings carry ordinary risks (traffic, falls, crowds, food and terrain); higher-risk activities require specific approval.

11 | ILLNESS AND EMERGENCIES

Disclose contagious illness likely to affect safe service delivery. Services may be rescheduled for health or safety reasons. **This is not an emergency or 24-hour crisis service:** calls, texts and email are not continuously monitored. For immediate danger or a medical emergency, call **911**. The Provider may seek emergency help, offer first aid within competence, contact designated people and share information reasonably necessary to protect safety. The Provider is not a medical substitute decision-maker merely by providing services.

12 | INCIDENT DOCUMENTATION

Significant incidents (including injury, elopement, collision, aggressive conduct or emergency response) may be documented, shared with appropriate parties as legally permitted and used to review the safety plan. Serious events may require service suspension pending reassessment.

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TRANSPORTATION AND SAFE HANDOVER

Sections 14–19

13 | TRANSPORTATION IS OPTIONAL AND CONDITIONAL

Transportation is permitted **only if selected on page 8**, subject to lawful, suitable automobile insurance and the Provider's safety assessment. The Provider may drive an insured Provider-owned vehicle; a Client-owned vehicle will be used only by express agreement after the owner confirms registration, roadworthiness, permission to drive and insurance covering the actual business use. The applicable automobile policy governs motor-vehicle liability; professional liability and CGL insurance do not replace it.

14 | SAFE TRAVEL AND MOBILITY

Seatbelts and legally required child/booster restraints must be used at all times. The Parent/Representative provides a suitable child seat unless otherwise agreed; the Provider may refuse travel if a seat cannot be fitted safely. The Client must follow reasonable driving-safety directions. Transport may be refused for unsafe behaviour, inaccessible equipment, inadequate securement, excessive passengers, unsafe weather, road hazards or insurance concerns. No personal-shopping or driver-training service is included.

15 | MILEAGE AND DIRECT TRAVEL COSTS

Mileage in the Provider's vehicle beyond the **geographic boundaries of the Municipality of Chatham-Kent** is charged at **$0.70/km**, based on reasonably recorded trip distances. Only the portion travelled outside the boundary is charged; applicable outside-boundary portions of outbound and return travel can be included if agreed in the itinerary. Parking and tolls are charged at actual cost. Any additional travel-time fee must be disclosed and agreed in advance.

16 | PICKUP AND TRANSFER OF RESPONSIBILITY

Before each booking, the parties identify pickup/drop-off location, approximate times, support required and any authorized receiving persons. At pickup, the Provider assumes the level of care identified in the Service Plan upon an appropriate handover. The person transferring responsibility must communicate urgent safety information and provide required items, equipment and medications if previously agreed.

17 | DROP-OFF AND RELEASE

A Client identified as requiring supervision will **not knowingly be left unattended**. Where the Service Plan requires handover, release occurs only when an authorized adult or other agreed recipient accepts responsibility. Capable adults may elect independent drop-off when lawful and suitable to the safety plan. If nobody is available, the Provider will attempt to contact authorized persons, continue appropriate supervision, and arrange a safe alternative; additional service time may be billed at the booked hourly rate. Police, emergency services or a relevant protection agency may be contacted where safe handover cannot be secured.

18 | CHILDREN, ACCESS INSTRUCTIONS AND CUSTODY

Parents/Representatives must disclose current court orders and any restrictions on collection or contact, and provide copies where relevant. The Provider may verify identity, refuse an unauthorized handover and contact appropriate authorities when there is an immediate child-safety concern. The Provider does not resolve custody disputes or act as a law-enforcement agent.

19 | VEHICLE INCIDENT PROCEDURE

Following a collision or breakdown, the Provider will stop safely, assess injury, contact emergency services where required, notify the designated contact when reasonably possible, comply with traffic/insurance reporting requirements and document the event. The Provider will not continue transportation when unsafe.

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CONSENT, CONFIDENTIALITY AND RECORDS

Sections 20–26

20 | INFORMED CONSENT AND CAPACITY

Consent must be voluntary, informed and specific to the decision. A Client who is capable of making the relevant decision may consent to, refuse or withdraw services, even if younger than 18. Where legally required, the appropriate substitute decision-maker will consent. Consent may be withdrawn, subject to already-incurred charges and lawful measures to respond to a genuine emergency. A payer, family member or guardian does not automatically obtain access to a capable Client's confidential information.

21 | PRIVACY, USE AND DISCLOSURE

The Provider collects only information reasonably needed to assess, deliver, record, bill and manage services, meet professional obligations and respond to safety concerns. Information is handled under applicable privacy laws, including the *Personal Health Information Protection Act, 2004* (PHIPA) where applicable, and the OCSWSSW Standards of Practice. Information may be shared with other professionals, agencies or family only with appropriate authority or where disclosure is permitted or required by law. Separate release-of-information consent may be requested.

22 | LIMITS OF CONFIDENTIALITY

Confidentiality has lawful exceptions. These may include: (a) mandatory child-protection reports under the *Child, Youth and Family Services Act, 2017*; (b) disclosures permitted or required to address serious risk of bodily harm or emergencies; (c) valid legal process; (d) lawful OCSWSSW or other regulatory investigations; and (e) other legally required reports. Under Ontario law, a required child-protection report is made directly to a children's aid society, even where information is otherwise confidential. The Provider will discuss disclosure in advance when permitted and reasonable.

23 | ELECTRONIC COMMUNICATION AND SOCIAL MEDIA

Telephone, voicemail, email, SMS and video may be used only as authorized on page 8. Electronic communications carry privacy and delivery risks, and are **not for emergencies**. Sensitive information may require a more secure channel. Social media is not a clinical communication channel. Client photographs, testimonials or identifying details will not be used in marketing without separate, valid consent.

24 | DOCUMENTATION, RETENTION AND ACCESS

The Provider creates relevant and secure records of professional services. Under OCSWSSW Principle IV, Client records are kept for **at least 10 years after the last entry**; for a Client younger than 18 when the last entry was made, for at least **10 years from the date the Client became or would have become 18**. Records may be kept longer where legally or professionally required. Requests for access or correction are handled according to applicable law, including applicable exceptions and fees.

25 | PRIVACY INCIDENTS

Where information is lost, accessed or disclosed improperly, the Provider will take reasonable containment, assessment, notification and remediation measures as required by law and professional standards. Records, including completed copies of this agreement, will be stored securely.

26 | BOUNDARIES AND THIRD-PARTY PAYMENTS

The Provider maintains professional boundaries, avoids inappropriate dual relationships and conflicts of interest, and does not accept commissions for referrals. Payment by an insurer, funder or relative does not change whose confidentiality and professional interests are protected.

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LIABILITY, CLIENT RIGHTS AND ENDING SERVICES

Sections 27–32

27 | STANDARD OF CARE, RISK AND LIABILITY

The Provider will exercise reasonable care and applicable professional skill. The Client understands that community and social services can involve unpredictable events, and no result (including prevention of all wandering, injury or third-party harm) is guaranteed. The Client/Representative must disclose material risks and follow lawful safety plans. Nothing in this Agreement releases the Provider from liability for negligence, professional misconduct, statutory duties or other liability that cannot lawfully be excluded. Liability is determined under applicable law and the facts, not by an automatic blanket waiver.

28 | PROPERTY, FINANCES AND BOUNDARIES

The Provider is not an insurer of valuables and will take reasonable care of Client belongings. Client purchases are paid with agreed funds and documented where practical. The Provider does not manage bank accounts, accept banking PINs, act as attorney for property, borrow from Clients or undertake independent financial transactions on their behalf without a separate lawful arrangement.

29 | SUSPENSION AND TERMINATION

The Client may end services at any time, subject to charges already incurred. The Provider may modify, suspend or end service if the work is outside competence, safety cannot reasonably be managed, an unresolved conflict exists, repeated cancellations occur, material information was withheld or payment is substantially overdue. Where social work services are being ended, reasonable notice, referral or transition planning will be considered to avoid inappropriate abandonment, except where immediate cessation is necessary for safety or law.

30 | CONCERNS, COMPLAINTS AND DISPUTE RESOLUTION

Concerns may be raised with the Provider. Clients retain the right to complain to the Ontario College of Social Workers and Social Service Workers, contact the Information and Privacy Commissioner of Ontario, seek independent advice or use courts or other lawful processes. The parties may attempt good-faith discussion or voluntary mediation, without limiting any regulatory, privacy or legal right.

31 | GENERAL LEGAL TERMS

This Agreement and the completed schedules form the entire service agreement. Amendments to scope or fees require advance written notice and, where appropriate, agreement. Invalid terms may be severed without invalidating the rest. Ontario law governs; no clause displaces applicable legislation, client rights or professional standards. Electronic signatures may be used as permitted by law.

32 | AGREEMENT REVIEW

The parties will review the Service & Safety Plan whenever needs or risks materially change. A new authorization should be obtained before adding transportation, specialized care or other materially different services.

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SCHEDULE A | INDIVIDUAL SERVICE AND SAFETY PLAN

Complete with Client / Representative

This schedule is part of the Agreement. Record what is actually authorized and safe to provide. Mark "none known" where appropriate; do not leave material safety questions unresolved.

SERVICE DELIVERY

CLIENT NAME

START DATE / REVIEW DATE

USUAL DAYS / TIMES

SUPERVISION LEVEL (1:1 / OTHER)

GOALS, AGREED ACTIVITIES AND AUTHORIZED LOCATIONS

CLINICAL AND PRACTICAL SAFETY DETAILS

ALLERGIES / SEIZURE / URGENT MEDICAL CONCERNS

MEDICATION OR EMERGENCY-DEVICE INSTRUCTIONS

COMMUNICATION / COGNITIVE NEEDS

MOBILITY / TRANSFER / PERSONAL-CARE NEEDS

BEHAVIOUR TRIGGERS / DE-ESCALATION STRATEGIES

ACCESSIBILITY / SENSORY NEEDS

EQUIPMENT / SUPPLIES THAT MUST BE PROVIDED BEFORE SERVICE

WANDERING / ELOPEMENT PLANNING

☐ None known ☐ History / possible risk ☐ High / immediate risk

KNOWN TRIGGERS / PREVIOUS INCIDENTS

LIKELY DESTINATIONS / RISKS IF MISSING

REDIRECTION / MONITORING STRATEGY

EMERGENCY ESCALATION / CALL 911 TRIGGERS

EMERGENCY AND CARE CONTACTS

PRIMARY CONTACT / RELATIONSHIP

PRIMARY TELEPHONE

ALTERNATE CONTACT / RELATIONSHIP

ALTERNATE TELEPHONE

OTHER INSTRUCTIONS (COURT ORDERS, DIETARY CONCERNS, RISK-MANAGEMENT DETAILS)

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SCHEDULE B | AUTHORIZATIONS AND SIGNATURES

Complete before first service

SERVICES SELECTED (CHECK ALL THAT APPLY)

- ☐ Respite / community support: $30/hr
- ☐ Social work services: $60/hr
- ☐ Standard social work letter: $60
- ☐ Community outings / appointments: $30/hr
- ☐ Transportation (as agreed)
- ☐ Other as written in Service Plan

TRANSPORT, PICKUP AND RELEASE

- ☐ Provider vehicle authorized
- ☐ Client vehicle (separate approval)

REGULAR PICKUP ADDRESS

REGULAR DROP-OFF ADDRESS

AUTHORIZED RECEIVING PERSON(S)

PERSONS NOT AUTHORIZED / RESTRICTIONS

- ☐ Independent drop-off expressly authorized for capable Client

COMMUNICATION CONSENT

- ☐ Telephone / voicemail
- ☐ Email
- ☐ SMS / text
- ☐ Video

Electronic communications carry confidentiality risks and are not monitored for emergencies.

CONFIRMATIONS

- ☐ I have read pages 1–6 and understand fees, safety, privacy and consent.
- ☐ I understand no psychotherapy is provided and 911 is used for emergencies.
- ☐ I understand $0.70/km outside Chatham-Kent when applicable.

SIGNATURES AND AGREEMENT DATE

Signing confirms informed consent by the capable Client or legally authorized decision-maker, and fee responsibility by the payer.

CLIENT NAME AND SIGNATURE — DATE

REPRESENTATIVE / AUTHORITY AND SIGNATURE (IF APPLICABLE) — DATE

FINANCIALLY RESPONSIBLE PAYER SIGNATURE (IF DIFFERENT) — DATE

EVAN ROGERS, MSW, RSW - PROVIDER SIGNATURE — DATE